



Bill Number: S.B. 1437

Hoffman Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Specifies that copies of a public record must be provided in the least expensive manner possible and with a preference for providing electronic copies.

HOFFMAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1437
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 39-121.01, Arizona Revised Statutes, is amended
3 to read:

4 39-121.01. Definitions; maintenance of records; requests for
5 copies, printouts, photographs or mailing of
6 public records; index; denial of requests

7 A. In this article, unless the context otherwise requires:

8 1. "Officer" means any person WHO IS elected or appointed to hold
9 any elective or appointive office of any public body and any chief
10 administrative officer, head, director, superintendent or ~~chairman~~
11 CHAIRPERSON of any public body.

12 2. "Public body" means this state, any county, city, town, school
13 district, political subdivision or tax-supported district in this state,
14 any branch, department, board, bureau, commission, council or committee of
15 the foregoing, and any public organization or agency, ~~THAT IS~~ supported
16 in whole or in part by monies from this state or any political subdivision
17 of this state, ~~or expending~~ THAT SPENDS monies provided by this state or
18 any political subdivision of this state.

19 B. All officers and public bodies shall maintain all records,
20 including records as defined in section 41-151, ~~THAT ARE~~ reasonably
21 necessary or appropriate to maintain an accurate knowledge of their
22 official activities and of any of their activities that are supported by
23 monies from this state or any political subdivision of this state.

24 C. Each public body ~~shall be~~ IS responsible for ~~the preservation,~~
25 ~~maintenance and care of~~ PRESERVING, MAINTAINING AND CARING FOR that body's
26 public records, and each officer ~~shall be~~ IS responsible for ~~the~~
27 ~~preservation, maintenance and care of~~ PRESERVING, MAINTAINING AND CARING
28 FOR that officer's public records. It ~~shall be~~ IS the duty of each such
29 body to carefully secure, protect and preserve public records from

1 deterioration, mutilation, loss or destruction, unless THE PUBLIC RECORD
2 IS disposed of pursuant to sections 41-151.15 and 41-151.19.

3 D. Subject to section 39-121.03:

4 1. Any person may request to examine or be furnished copies,
5 printouts or photographs of any public record during regular office hours
6 or may request that the custodian mail a copy of any public record THAT IS
7 not otherwise available on the public body's website to the requesting
8 person. The custodian may require any person requesting that the
9 custodian mail a copy of any public record to pay in advance for any
10 copying and postage charges. The custodian of such records shall promptly
11 furnish such copies, printouts or photographs and may charge a fee if the
12 facilities are available, except that public records for purposes listed
13 in section 39-122 or 39-127 shall be furnished without charge. At the
14 time of the request, the requesting person shall affirm that the public
15 record is not for a commercial purpose or, if the public record is for a
16 commercial purpose, that the requesting person will provide a statement
17 that explains the intended use pursuant to section 39-121.03,
18 subsection A.

19 2. If requested, the custodian of the records of an agency shall
20 also furnish an index of records or categories of records that have been
21 withheld and the reasons the records or categories of records have been
22 withheld from the requesting person. The custodian shall not include in
23 the index ANY information that is expressly made privileged or
24 confidential in statute or a court order. This paragraph shall not be
25 construed by an administrative tribunal or a court of competent
26 jurisdiction to prevent or require an order compelling a public body other
27 than an agency to furnish an index. For the purposes of this paragraph,
28 "agency" has the same meaning prescribed in section 41-1001 but does not
29 include the department of public safety, the department of transportation
30 motor vehicle division, the department of juvenile corrections and the
31 state department of corrections.

32 3. If the custodian of a public record does not have facilities for
33 making copies, printouts or photographs of a public record that a person
34 has a right to inspect, the person shall be granted access to the public
35 record for the purpose of making copies, printouts or photographs. The
36 copies, printouts or photographs shall be made while the public record is
37 in the possession, custody and control of the custodian of the public
38 record and ~~shall be~~ IS subject to the supervision of the custodian.

39 4. ON REQUEST, COPIES OF A PUBLIC RECORD SHALL BE PROVIDED IN THE
40 LEAST EXPENSIVE MANNER POSSIBLE AND ~~[IN AN]~~ [WITH A PREFERENCE FOR
41 PROVIDING] ELECTRONIC ~~[FORMAT]~~ [COPIES]. EXCEPT FOR A PUBLIC RECORD
42 REQUEST INVOLVING A VIDEO RECORDING FROM A LAW ENFORCEMENT AGENCY PURSUANT
43 TO SECTION 39-129 OR A PUBLIC RECORD FOR A COMMERCIAL PURPOSE PURSUANT TO
44 SECTION 39-121.03, THE FEE FOR A PUBLIC RECORD SHALL BE BASED ON MATERIAL
45 COSTS ONLY.

46 E. Access to a public record is deemed denied if a custodian fails
47 to promptly respond to a request for production of ~~a~~ THE public record or

Senate Amendments to S.B. 1437

1 fails to provide to the requesting person an index of any record or
2 categories of records that are withheld from production pursuant to
3 subsection D, paragraph 2 of this section.

4 Enroll and engross to conform

5 Amend title to conform

JAKE HOFFMAN

1437FloorHOFFMAN.docx

02/05/2026

05:06 PM

C: SP

130IRHDFQ